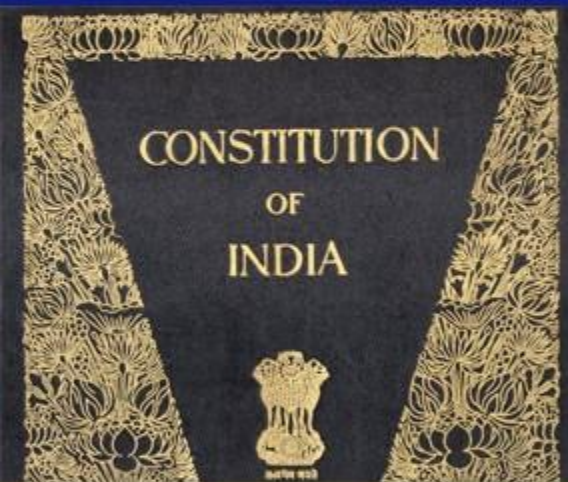


INDIAN POLITY



MODULE - 47

DIRECTIVE PRINCIPLES

- CRITICISM OF DPSP
- UTILITY OF DPSP

DIRECTIVE PRINCIPLES OF STATE POLICY

SANCTION BEHIND DIRECTIVE PRINCIPLES



B.N RAO

- 1** Sir B N Rau, the Constitutional Advisor to the Constituent Assembly, recommended that the **rights of an individual** should be divided into two categories- **justiciable and non-justiciable**, which was accepted by the Drafting Committee.
- 2** Consequently, the Fundamental Rights, which are justiciable in nature, are incorporated in Part III and the Directive Principles, which are non-justiciable in nature, are incorporated in Part IV of the Constitution.

DIRECTIVE PRINCIPLES OF STATE POLICY

SANCTION BEHIND DIRECTIVE PRINCIPLES



**ALLADI KRISHNA
SWAMY IYER**

- 3** Though the Directive Principles are non-justiciable, the Constitution (**Article 37**) makes it clear that 'these principles are **fundamental in the governance** of the country and it shall be the duty of the state to apply these principles in making laws'.
- 4** Thus, they **impose a moral obligation** on the state authorities for their application, but the **real force behind them is political**, that is, **public opinion**.
- 5** As observed by Alladi Krishna Swamy Ayyar, 'no ministry **responsible to the people** can afford light-heartedly **to ignore** the provisions in Part IV of the Constitution'.

DIRECTIVE PRINCIPLES OF STATE POLICY

SANCTION BEHIND DIRECTIVE PRINCIPLES

- 6 Similarly, Dr B R Ambedkar said in the Constituent Assembly that “a government which rests on popular vote can hardly ignore the Directive Principles while shaping its policy. **If any government ignores them, it will certainly have to answer for that before the electorate at the election time**”.



DIRECTIVE PRINCIPLES OF STATE POLICY

SANCTION BEHIND DIRECTIVE PRINCIPLES



**DIVERSITY
OUR
STRENGTH**

7

The framers of the Constitution made the Directive Principles non-justiciable and legally non-enforceable because:

- The country **did not possess sufficient financial resources** to implement them.
- The **presence of vast diversity and backwardness** in the country would stand in the way of their implementation.
- The newly born independent Indian State with its many preoccupations **might be crushed under the burden** unless it was free to decide the order, the time, the place and the mode of fulfilling them.

DIRECTIVE PRINCIPLES OF STATE POLICY

SANCTION BEHIND DIRECTIVE PRINCIPLES



8 The Constitution makers, therefore, taking a pragmatic view, refrained from giving teeth to these principles.

9 They believed more in an awakened public opinion rather than in court procedures as the ultimate sanction for the fulfilment of these principles.

Thus the real sanction was people and public opinion.

DIRECTIVE PRINCIPLES OF STATE POLICY

CRITICISM OF THE DIRECTIVE PRINCIPLES

The Directive Principles of State Policy have been criticised by some members of the Constituent Assembly as well as other constitutional and political experts on the following grounds:

POINT NO: 1

NO LEGAL FORCE

1 The Directives have been criticised mainly because of **their non-justiciable character**.

2 While K T Shah dubbed them as “**pious superfluities**” and compared them with “**a cheque on a bank, payable only when the resources of the bank permit**”, Nasiruddin contended that these principles are “**no better than the new year’s resolutions, which are broken on the second of January**”.

3 Even as T T Krishnamachari described the Directives as “**a veritable dustbin of sentiments**”, K C Wheare called them as a “manifesto of aims and aspirations” and Sir Ivor Jennings thought they are only present as “**pious aspirations**”.

DIRECTIVE PRINCIPLES OF STATE POLICY

CRITICISM OF THE DIRECTIVE PRINCIPLES

POINT NO: 2

ILLOGICALLY ARRANGED

1 Critics opine that the Directives are not arranged in a logical manner based on a **consistent philosophy**.

2 According to N Srinivasan, “the Directives are neither properly classified nor logically arranged”.

3 “The declaration mixes up relatively unimportant issues with the most vital economic and social questions”

4 “It combines rather incongruously the modern with the old and provisions suggested by the **reason and science with provisions based purely on sentiment and prejudice**”.

5 Sir Ivor Jennings too pointed out that these principles have no consistent philosophy.

DIRECTIVE PRINCIPLES OF STATE POLICY

CRITICISM OF THE DIRECTIVE PRINCIPLES

POINT NO: 3

CONSERVATIVE



Coat of Arms of
Fabian Society

- 1 According to Sir Ivor Jennings, the Directives are based on the political philosophy of the 19th Century England.
- 2 He marked: “The ghosts of Sydney Webb and Beatrice Webb stalk through the pages of the text. Part IV of the Constitution expresses Fabian Socialism without the Socialism”.
- 3 The question whether they are suitable for the twenty-first century cannot be answered; but it is quite probable that they will be entirely out moded.

DIRECTIVE PRINCIPLES OF STATE POLICY

CRITICISM OF THE DIRECTIVE PRINCIPLES

POINT NO: 4

CONSTITUTIONAL CONFLICT



Leads to Constitutional conflict

1

K Santhanam has pointed out that the Directives lead to a Constitutional Conflict

- a) Between the Centre and the States.
- b) Between the President and the Prime Minister.
- c) Between the Governor and the Chief Minister.

2

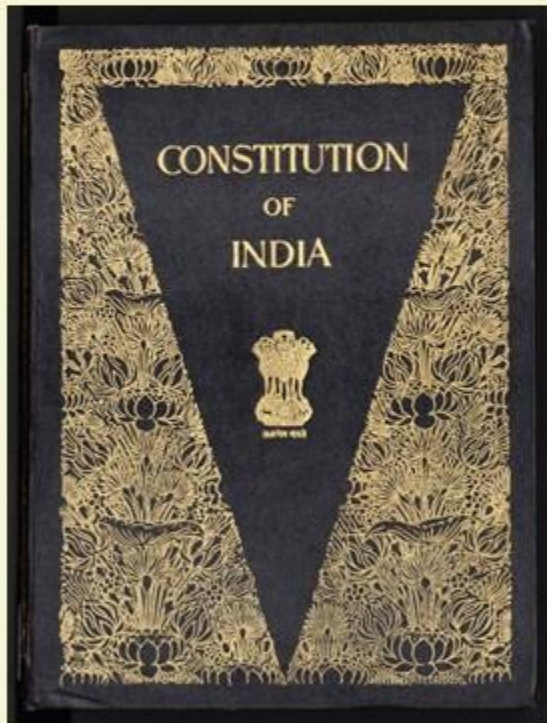
According to him, the Centre can give directions to the States with regard to the implementation of these principles and in case of non-compliance, can dismiss the State Government.

DIRECTIVE PRINCIPLES OF STATE POLICY

CRITICISM OF THE DIRECTIVE PRINCIPLES

POINT NO: 4

CONSTITUTIONAL CONFLICT

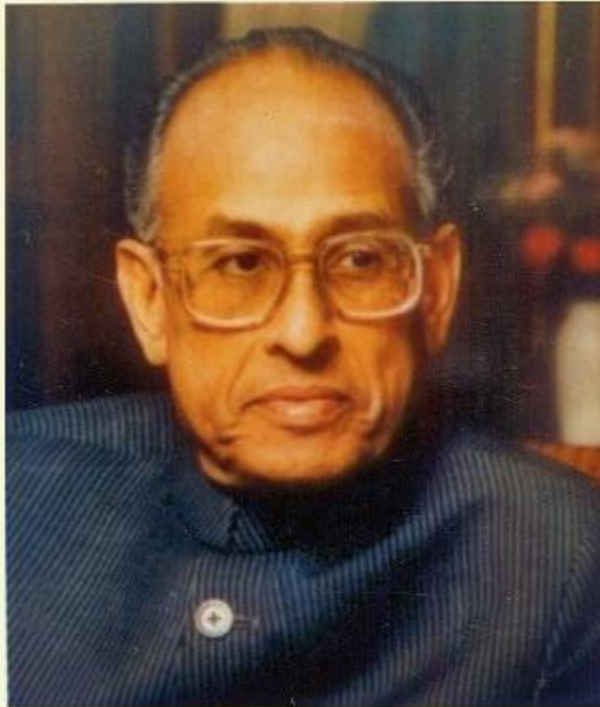


3 Similarly, when the Prime Minister gets a Bill (which violates the Directive Principles) passed by the Parliament, the **President may reject the Bill on the ground that these principles are fundamental to the governance of the country and hence, the Ministry has no right to ignore them.**

4 The same constitutional conflict may occur between the Governor and the Chief Minister at the State level.

DIRECTIVE PRINCIPLES OF STATE POLICY

UTILITY OF DIRECTIVE PRINCIPLES



L.M. SINGHVI

- 1 In spite of the above criticisms and shortcomings, the Directive Principles **are not an unnecessary appendage** to the Constitution.
- 2 The Constitution itself declares that they are fundamental to the governance of the country.
- 3 According to L M Singhvi, an eminent jurist and diplomat, “the Directives are the life giving provisions of the Constitution. They constitute the stuff of the Constitution and **its philosophy of social justice**”.

DIRECTIVE PRINCIPLES OF STATE POLICY

UTILITY OF DIRECTIVE PRINCIPLES



4

M C Chagla, former Chief Justice of India, is of the opinion that, “if all these principles are fully carried out, **our country would indeed be a heaven on Earth**. India would then be not only democracy in the political sense, but also a welfare state looking after the welfare of its citizens”.

5

Dr B R Ambedkar had pointed out that the Directives have great value because they lay down that the **goal of Indian polity is “economic democracy”** as distinguished from **“political democracy”**.

DIRECTIVE PRINCIPLES OF STATE POLICY

UTILITY OF DIRECTIVE PRINCIPLES



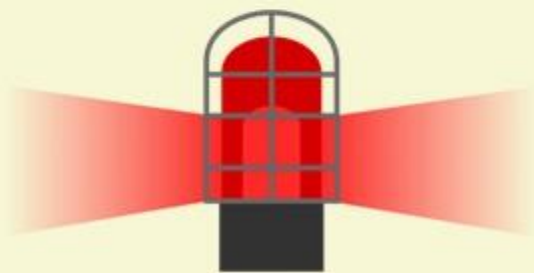
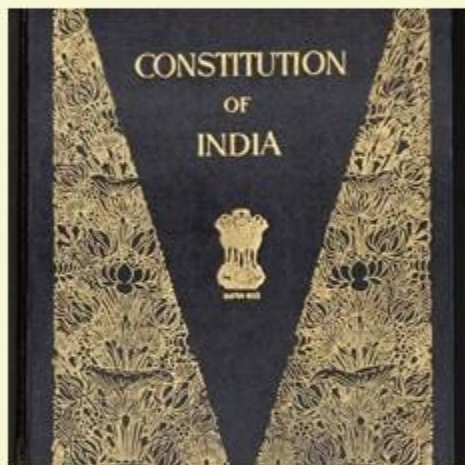
B.N RAO

6 Granville Austin opined that the Directive Principles are “aimed at furthering the goals of the social revolution or to foster this revolution by establishing the conditions necessary for its achievement”.

7 Sir B N Rau, the Constitutional Advisor to the Constituent Assembly, stated that the Directive Principles are intended as “moral precepts for the authorities of the State. They have at least an educative value”.

DIRECTIVE PRINCIPLES OF STATE POLICY

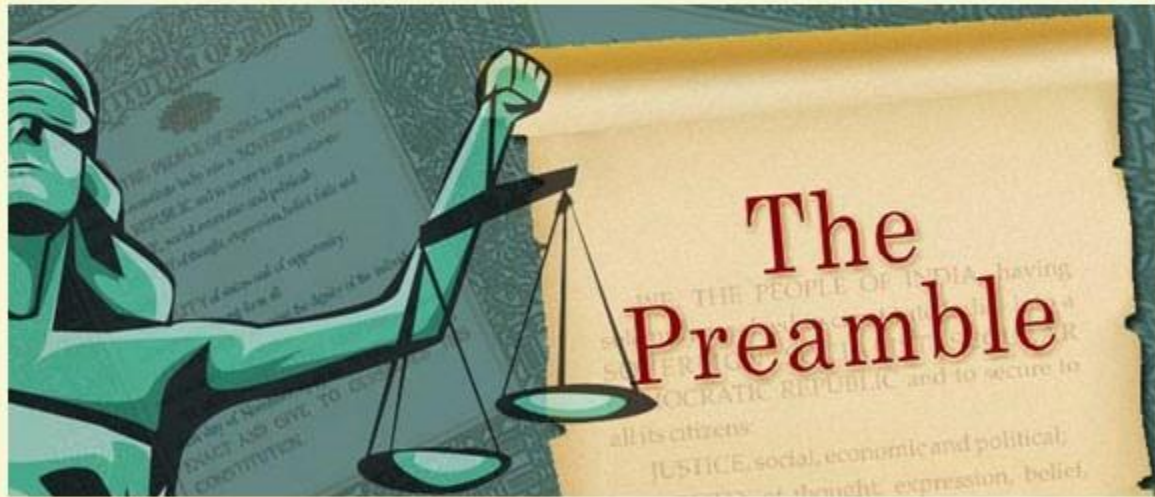
UTILITY OF DIRECTIVE PRINCIPLES



- 9 According to **M C Setalvad**, the former Attorney General of India, the Directive Principles, although confer no legal rights and create no legal remedies, are significant and useful in the following ways:
1. They are like an '**Instrument of Instructions**' or general recommendations **addressed to all authorities** in the Indian Union. They remind them of the basic principles of the new social and economic order, which the Constitution aims at building.
 2. They have served as **useful beacon-lights to the Courts**. They have helped the courts in exercising their power of **judicial review**, that is, the power to determine the constitutional validity of a law.

DIRECTIVE PRINCIPLES OF STATE POLICY

UTILITY OF DIRECTIVE PRINCIPLES



- 9 According to M C Setalvad, the former Attorney General of India, the Directive Principles, although confer no legal rights and create no legal remedies, are significant and useful in the following ways (continued...):
 3. They **form the dominating background to all State action**, legislative or executive and also a guide to the Courts in some respects.
 4. They **amplify the Preamble**, which solemnly resolves to secure to all citizens of India justice, liberty, equality and fraternity.

DIRECTIVE PRINCIPLES OF STATE POLICY

UTILITY OF DIRECTIVE PRINCIPLES



10

The Directives also play the following roles:

1. They facilitate **stability and continuity** in domestic and foreign policies in political, economic and social spheres **in spite of the changes of the party in power.**
2. They are **supplementary to the fundamental rights of the citizens.** They are intended to fill in the vacuum in Part III by providing for social and economic rights.
3. Their implementation creates a favourable atmosphere for **the full and proper enjoyment of the fundamental rights by the citizens.** Political democracy, without economic democracy, has no meaning.

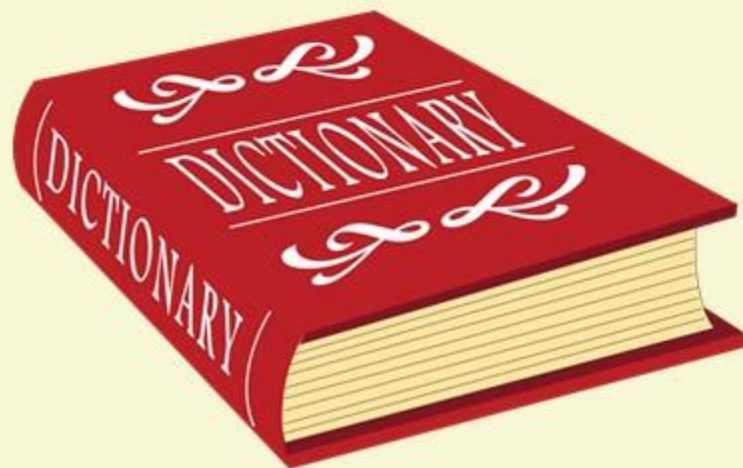
DIRECTIVE PRINCIPLES OF STATE POLICY

UTILITY OF DIRECTIVE PRINCIPLES



- 10** The Directives also play the following roles (continued):
4. They **enable the Opposition to exercise influence and control over the operations of the Government.** The Opposition can blame the ruling party on the ground that its activities are opposed to the Directives.
 5. They serve as a **crucial test for the performance of the Government.** The people can examine the policies and programmes of the Government in the light of these constitutional declarations.
 6. They serve as a **common political manifesto.** A ruling party, irrespective of its political ideology, has to recognise the fact that **these principles are intended to be its guide, philosopher and friend in its legislative and executive acts.**

THESAURUS FOR DIFFICULT WORDS IN THIS MODULE	
WORD	MEANING
Pious	devoutly religious.
Superfluity	an unnecessarily or excessively large amount or number of something (or) an unnecessary thing.



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